

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FALCONE GLOBAL SOLUTIONS, LLC, *Complainant*

v.

MAURICE WARD NETWORKS, LTD. D/B/A MAURICE WARD GROUP; MAURICE WARD & CO., BV.; AND MAURICE WARD & CO., S.R.O., *Respondents*.

DOCKET NO. 18-04

Served: October 2, 2018

ORDER OF: Erin M. WIRTH, *Administrative Law Judge*.

SCHEDULING ORDER

On June 27, 2018, an initial order issued in this proceeding required the parties to file a joint status report with proposed schedule within twenty days of the filing of the answer. On July 27, 2018, an Order was issued denying Respondents' motion seeking a more definite statement. On August 17, 2018, Respondents filed their answer. On September 27, 2018, the parties filed their joint status report with proposed schedule.

In the joint status report, the parties indicate that in a related federal proceeding, there is an eight-month discovery track scheduled to commence after resolution of a pending motion to dismiss and the first answer being filed. The parties propose a similar schedule here, which would conclude discovery on June 20, 2019. The parties further indicate that they are scheduling a mediation of both proceedings in November.

Under Commission rules, initial disclosures should be exchanged within seven days of service of a respondent's answer and discovery must be completed within 150 days of the service of a respondent's answer. *See* 46 C.F.R. § 502.141. The parties have already requested multiple extensions and it is not clear that initial disclosures have been exchanged. While alternative dispute resolution such as mediation is encouraged, as indicated to the parties previously, it is also important to ensure that progress is made in a timely fashion. Moreover, discovery can begin prior to the mediation occurring.

The parties' proposed schedule suggests a deadline for dispositive motions. Dispositive motions such as motions for summary decision are disfavored at the conclusion of a proceeding as they do not create any efficiencies for the parties or the agency. The proposed schedule contemplates pretrial motions and a hearing. Hearings are generally held through the filing of

documents and the parties have not provided sufficient reason to alter that general practice. To assist the parties with scheduling, a briefing schedule has been included.

For the reasons stated above, it is hereby

ORDERED that the parties abide by the following schedule:

October 15, 2018	Parties exchange initial disclosures.
October 19, 2018	Amendment of pleadings and joinder of any parties.
November 1, 2018	First monthly joint status report due.
February 1, 2019	Complainant to identify experts (if any).
March 1, 2019	Respondents to identify expert (if any).
March 29, 2019	All discovery completed.
April 26, 2019	Complainant files brief, proposed findings of fact, and appendix.
May 24, 2019	Respondents file opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.
June 10, 2019	Complainant files reply brief and responses to Respondents' proposed findings of fact.

To ensure timely progress, the parties will be required to file joint status reports on the first day of every month, beginning on November 1, 2018. These joint reports should indicate the status of discovery and progress made in the proceeding as well as any significant developments in the related federal proceeding. The joint status reports should be emailed to secretary@fmc.gov with copies to opposing counsel and judges@fmc.gov.

All requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding, and it is therefore in the best interests of all parties to proceed expeditiously.

The Commission issued a notice of proposed rulemaking in Docket 18-06 regarding the interpretation of the scope of 46 U.S.C. § 41102(c) which is one of the allegations in the complaint. The parties may wish to review this docket as they litigate this proceeding.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment*

Co., 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

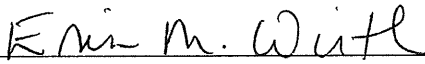
1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by a citation to a specific, unique page number in the appendix with the evidence that the party contends will support the proposed finding of fact.¹ The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
3. **[Party’s] Responses to [Party’s] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party’s proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party’s] proposed findings of fact with the hard copies of the response to [Party’s] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
4. **[Party’s] Appendix.** The evidence on which a party’s proposed findings of fact or response to another party’s proposed findings of fact is based shall be included in an appendix.

¹ Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am., NT & SA*, 285 F.3d 764, 775 (9th Cir. 2002). “General references [to evidence] without page or line numbers are not sufficiently specific.” *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

- a. The cover of the appendix shall identify the party or parties that prepared the appendix;
- b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
- c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
- d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
- e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondents contend that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondents shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Administrative Law Judge